



CHAPTER lix.

An Act to confirm a Provisional Order under the Sea Fisheries Act 1868 and the Acts amending the same relating to an oyster fishery in the River Roach. [31st July 1923.] A.D. 1923.
—

WHEREAS the Minister of Agriculture and Fisheries has made the Provisional Order set forth in the schedule hereto under the provisions of the Sea Fisheries Act 1868 and Acts amending the same : 31 & 32 Vict. c. 45.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Oyster Fishery (Roach River) Provisional Order Confirmation Act 1923. Short title.

[Ch. lix.] *Oyster Fishery (Roach [13 & 14 GEO. 5.]
River) Provisional Order Confirmation Act, 1923.*

A.D. 1923.

S C H E D U L E.

ROACH RIVER FISHERY ORDER 1923.

Order for conferring on the Roach River Oyster Fishery Company Limited of Burnham-on-Crouch in the County of Essex a right of Several Oyster Fishery in the River Roach in the County of Essex.

Grantees.

1. The Roach River Oyster Fishery Company Limited of Burnham-on-Crouch in the county of Essex their successors and assigns (in this Order called " the Grantees ") shall be the Grantees under this Order.

Limits of
fishery.

2. The following are the description and limits of the fishery (as shown on the plan sealed by the Minister of Agriculture and Fisheries and marked " Roach River Fishery Order 1923 ") viz. All that part of the River Roach which is covered by water at low neap tide and is situate within the parishes or places of Foulness Great Wakering Paglesham Great Stambridge Canewdon and places adjacent all in the county of Essex and which is comprised within the following limits or boundaries that is to say within a line drawn at the junction of the River Roach with the River Crouch as shown by the beacons at present erected the property of Sir Gerald Mildmay extending up the north side of the River Roach to the post and beacons at the mouth of a creek known as the Pool Creek and marking the southern boundary of an oyster laying extending up the said creek the property of Mrs. J. T. Rogers thence up the said river to the eastern or north-eastern boundary of an oyster laying the property of Mr. Hy. Nicholls as at present marked out by beacons on the northern shore thence along the southern boundary known as the offing of the said last-named oyster laying to the north or north-western boundary thereof as at present marked out by beacons on the northern shore thence up the north side of the said river to the eastern or north-eastern boundary of an oyster laying the property of the Messrs. A. and F. Wiseman as at present marked out by beacons on the northern shore thence along the southern boundary or offing of the said laying to the point where the said laying adjoins the layings of Messrs. Smith Brothers Limited thence in a southerly direction to the post on the shore marking the eastern or north-eastern boundary of the

[13 & 14 GEO. 5.] *Oyster Fishery (Roach River) Provisional Order Confirmation Act, 1923.* [Ch. lix.]

said oyster laying of the said Messrs. Smith Brothers Limited thence extending down the south side of the River Roach along the Potten shore to Potten Point and from thence across the mouth of the creek called or known by the name of Yoke Fleet to the posts marking the north-eastern boundary of an oyster laying extending up the said creek the property of executors of Mr. Z. Pettitt thence extending down the Foulness shore of the said river to the point of junction with the River Crouch as shown by the beacons at present erected the property of the said Sir Gerald Mildmay. A.D. 1923.

3. This Order confers on the Grantees a right of several oyster fishery within the limits above mentioned but shall not operate to prevent the use by bonâ fide professional fishermen carrying on business at Paglesham or Burnham for the purpose of catching fish other than oysters of trawls which have plain foot-ropes constructed solely of rope and bearing no chains or other attachments. Right of several fishery.

4. The limits of the said fishery shall be marked out as the Minister of Agriculture and Fisheries may from time to time direct and in the event of the marks being obliterated by storm or otherwise they shall be replaced by the Grantees. Marking of limits.

5. Notice of the said limits and the mode of marking them shall be given to fishermen dredgers and other persons as follows that is to say by advertisements in the local newspapers and by hand-bills posted at the registered office of the Grantees and in and about the neighbourhood of the fishery. Notice of limits.

6. No building erections embankments or other works shall at any time be commenced or executed within the limits above described without the previous consent in writing of the Board of Trade. Works not to be commenced without consent of Board of Trade.

7. The Grantees shall render to the Minister of Agriculture and Fisheries such accounts of their capital expenditure and income and of all oysters sold by them in such form and at such times as the Minister may require and shall allow the Minister or any person appointed by him to inspect the fishery and all books and documents in their possession relating thereto and shall give to the Minister or to such person all such information relating thereto as he may require. Grantees to render accounts &c.

8. Subject to the provisions of section 45 of the Sea Fisheries Act 1868 this Order shall continue in operation for sixty years from the date of its confirmation. Duration of Order.

9. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Grantees to take use or in any manner interfere with any portion of the shore or bed Crown rights.

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River) Provisional Order Confirmation Act, 1923.*

A.D. 1923. of the sea or of any river channel creek bay or estuary or any
— land hereditaments subjects or rights of whatsoever description
belonging to His Majesty in right of His Crown and under the
management of the Commissioners of Woods or the Board of
Trade respectively without the consent in writing of the Com-
missioners of Woods or the Board of Trade as the case may be
on behalf of His Majesty first had and obtained for that purpose
(which consent the said Commissioners and the Board are hereby
respectively authorised to give).

Cesser of
existing
several
fishery.

10. The right of several oyster fishery conferred by the
Roach River Oyster Fishery Act 1866 is hereby determined as
from the date of the confirmation of this Order and sections
28 to 39 both inclusive of the said Act which relate to such
several oyster fishery shall cease to operate as from that date.

Short title.

11. This Order may be cited as the Roach River Fishery
Order 1923.

Made by the Minister of Agriculture and Fisheries under
the Sea Fisheries Act 1868 and the Acts amending that
Act.

In witness whereof the official seal of the Ministry
of Agriculture and Fisheries is hereunto affixed this
fourteenth day of May nineteen hundred and twenty-
three.



HENRY G. MAURICE
Fisheries Secretary
Authorised by the Minister.

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